

COMBINED NOTICE OF INTENT AND SOLICITATION

1.0 DESCRIPTION

The Department of Health and Human Services (HHS), Office of Mission Acquisition Solutions (OMAS) on behalf of National Institutes of Health (NIH), Center for Information Technology (CIT) Network Services (NS), intends to procure on a sole source basis, Internet 2 (i2 or I2) communication services from the State of Maryland dba MAX Gigapop (MAX) from:

Mid-Atlantic Crossroads (MAX),
5825 University Research Court, Suite 2500,
College Park, MD 20740.

The publicizing of this notice is in accordance with Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) Per 5.101(b)(1)(i), a presolicitation notice is not required if the solicitation will be posted in the GPE and allow for electronic submission of offers. This acquisition will be processed under FAR Part 12 – Acquisition of Commercial Products and Commercial Services and will be made pursuant to the authority at 41 U.S.C. 1901, utilizing simplified procedures in accordance with RFO 12.201-1. Competition is being restricted in accordance with RFO FAR 12.102(a), based on the Contracting Officer's determination that only one source is available to meet the Government's requirements. The North American Industry Classification System code is 517111 and the business size standard is 1,500 employees.

2.0 UNIQUE QUALIFICATIONS OF THE CONTRACTOR

The proposed contractor, Mid-Atlantic Crossroads (MAX) is a regional optical network and high-performance networking center located at the University of Maryland College Park. MAX serves the academic, research, government, scientific, and business communities within the Mid-Atlantic region that require access to leading edge telecommunications technologies.

Accordingly, Mid-Atlantic Crossroads (MAX) is the only responsible source capable of meeting the Government's minimum requirements that provides connectivity via the MAX Gigapop network. No other supplies or services will satisfy agency requirements without unacceptable risk or substantial duplication of cost that is not expected to be recovered through competition.

3.0 REQUEST FOR QUOTE

Solicitation number 75N98026Q00256 is issued as a Request for Quotation (RFQ) for Internet 2 (i2 or I2) communication services from the State of Maryland dba MAX Gigapop (MAX).

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

This notice is not a request for competitive quotations. However, all responsible sources may submit a capability statement, which will be considered by the agency. The response and any other information furnished must be in writing and must contain material in sufficient detail to allow the Office of Mission Acquisition Solutions (OMAS) to determine if the party can perform the requirement. All responses

must be sent via email to Contracting Officer, Kari Peterson, at karina.peterson@hhs.gov and Contract Specialist, Teferi Gebremariam, at teferi.gebremariam@hhs.gov by **no later than 11:00 am EST on Tuesday, April 28, 2026**. A determination by the Government not to compete this proposed requirement based upon responses to this notice is solely within the discretion of the Government. Information received will be considered solely for the purpose of determining whether to conduct a competitive procurement. In order to receive an award, Contractors must be registered and have valid certification through SAM.gov. **Reference solicitation number: 75N98026Q00256 on all correspondence.**

4.0 PURPOSE

The purpose of this acquisition is to procure Internet 2 (i2 or I2) communication services from the State of Maryland dba MAX Gigapop (MAX). Internet 2 (i2 or I2) provides communications with various cloud service providers via the MAX Gigapop network. These connections provide access to multiple cloud service providers.

Mid-Atlantic Crossroads (MAX) is a regional optical network and high-performance networking center located at the University of Maryland College Park. MAX serves the academic, research, government, scientific, and business communities within the Mid-Atlantic region that require access to leading edge telecommunications technologies.

5.0 BACKGROUND

NIH relies on the i2 connection for communication with researchers, research-partners, cloud service providers and the academic community for uninterrupted, fast communication of large data sets that the commodity internet connection for NIH would cause delays and connection failures for this important and vital communication of data.

Additionally, NIH requires connectivity for the National Library of Medicine, as well as connectivity to Amazon Web Services (AWS). This order also supports cloud connectivity for NIH Business Systems (NBS) and the CIT Cloud Connectivity Section (CCS). The NBS portion supports connectivity to Oracle Cloud Infrastructure (OCI), while the CCS portion supports connectivity to Microsoft Azure cloud infrastructure.

6.0 SCOPE/REQUIREMENTS

Internet 2 (i2 or I2) provides communications with various cloud service providers. NIH researchers and scientists require high-speed communications to the cloud service providers. These procured connections provide connections to multiple cloud service providers and support multiple NIH Institutes and Centers.

Minimum Requirements

The Contractor shall:

1. Provide continuous monitoring of all connectivity 24 hours per day, 7 days per week (24x7) on a 24-hour basis.
2. Provide access to a service request/ticketing system that enables Government personnel to submit trouble tickets for repair, service issues, and related support requests.
3. Provide timely status updates to the Government in the event of a circuit outage, service degradation, or other incident affecting performance or availability.

4. Provide weekly reports identifying any planned maintenance, scheduled service interruptions, or known outages that may affect the Government's services.

Internet Connection Site: NS ENG - NLM 10 Gbps Internet2 Connection

Internet Connection Site: eRA.MAX.DirectConnect (eRA Commons (<https://public.era.nih.gov/commons/>) is an online interface where grant applicants, recipients, and federal staff at NIH and grantor agencies can access and share administrative information relating to research grants (see eRA Commons overview).

Internet Connection Site: NS ENG eRA.MAX Cross Connect at Equinix (Ashburn, VA). (Equinix Cross Connects are dedicated, physical cabling links between two parties within an Equinix IBX data center. These connections enable direct, high-performance, low-latency, and secure data exchange across networks, cloud platforms, and enterprise systems.)

Internet Connection Site: CIT Strides Azure ER MAX Two 10G Layer 2 Ports and Transport (The STRIDES Initiative aims to help NIH and its institutions accelerate biomedical research by reducing barriers in utilizing commercial cloud services.)

7.0 CONSIDERATION AND PAYMENT

In consideration of satisfactory performance of the work as described throughout this contract, the Contractor shall be paid a fixed price for each CLIN (if exercised). If the options are exercised, funding will be obligated by modification to the contract. The base period and option periods are priced as follows:

ITEM	Part Description	QTY	Unit Price	Extended Cost
1	NS ENG - NLM 10 Gbps Commodity Internet	12	TBD	TBD
2	NS ENG eRA.MAX.DirectConnect	1	TBD	TBD
3	Cross Connect at Equinix (Ashburn, VA).	1	TBD	TBD
4	(2) NS ENG - CIT Strides AzureER via MAX -10G Layer 2 Ports and Transport	2	TBD	TBD
5	Cross Connect at Equinix (Ashburn)	2	TBD	TBD
6	NS ENG - Two NLM 10G Transport From (Coresite at Reston, VA)/(Equinix at Ashburn) to NLM (College Park, MD)	2	TBD	TBD
7	Cross Connect at Coresite (Reston, VA)	1	TBD	TBD
8	Cross Connect at Equinix (Ashburn, VA)	1	TBD	TBD
	NIH Circuits to Oracle GovCloud			
9	CIRCUIT 1: 10G Layer 2 Ethernet Transport From: NIH Bethesda B12 Datacenter (12 South Drive - Bethesda, MD 21814) To: (Primary USGOV1) Equinix (21691 Filigree Court, Ashburn, VA 20147)	1	TBD	TBD
10	Cross Connect at Equinix (Ashburn, VA)	1	TBD	TBD

11	Internet2 Rapid Private Interconnect (RPI) service From: NIH Bethesda B12 Datacenter (12 South Drive - Bethesda, MD 21814) Through: Internet2 Dallas PoP To: (DR USGOV2) (2335 S. Ellis Street - Chandler, AZ 85286)	1	TBD	TBD
12	Local Loop 10G Wave from Chandler to Dallas (Zayo)	1	TBD	TBD

8.0 PERIOD OF PERFORMANCE

BASE YEAR POP: 05/01/2026– 04/30/2027

9.0 CONTRACT TYPE

This is a firm fixed price purchase for severable services.

10.0 GOVERNMENT FURNISHED EQUIPMENT/INFORMATION (GFE/GFI)

This requirement shall not include or require GFE or GFI to be supplied to the vendor by the Center for Information Technology (CIT).

11.0 INSPECTION AND ACCEPTANCE CRITERIA

Pursuant to FAR clause 52.212-4, all work described in the RFQ to be delivered under this purchase order is subject to final inspection and acceptance by an authorized representative of the Government. The authorized representative of the Government is the Contracting Officer's Technical Point of Contact (TPOC), identified in section 6.1 below, who is responsible for inspection and acceptance of all services, materials, or supplies to be provided by the Contractor.

11.1 Technical Point of Contact

TPOC: TBD

Email: TBD

Phone: TBD

12.0 INVOICE SUBMISSION AND PAYMENT

Invoices shall be submitted monthly in arrears (total fixed price divided by 12). Payment shall be made monthly in arrears upon the delivery and acceptance of the services required.

The following clause is applicable to all Purchase Orders, Task or Delivery Orders, and Blanket Purchase Agreement (BPA) Calls: **Prompt Payment** (Jan 2017) FAR 52.232-25. Highlights of this

clause and NIH implementation requirements follow:

I. Invoice Requirements

A. An invoice is the Contractor's bill or written request for payment under the contract for

supplies delivered or services performed. A proper invoice is an "Original" which must include the items listed in subdivisions 1 through 12, below, in addition to the requirements of FAR 32.9. If the invoice does not comply with these requirements, the Contractor will be notified of the defect within 7 days after the date the designated billing office received the invoice (3 days for meat, meat food products, or fish, and 5 days for perishable agricultural commodities, dairy products, edible fats, or oils) with a statement of the reasons why it is not a proper invoice. (See exceptions under II., below.) Untimely notification will be considered in the computation of any interest penalty owed the Contractor.

1. Vendor/Contractor: Name, Address, Point of Contact for the invoice (Name, title, telephone number, e-mail and mailing address of point of contact).
2. Remit-to address (Name and complete mailing address to send payment).
3. Remittance name must match exactly with name on original order/contract. If the Remittance name differs from the Legal Business Name, then both names must appear on the invoice.
4. Invoice date.
5. Unique invoice #s for all invoices per vendor regardless of site.
6. NBS document number formats must be included for awards created in the NBS: Contract Number; Purchase Order Number; Task or Delivery Order Number and Source Award Number (e.g., Indefinite Delivery Contract number; General Services Administration number); or BPA Call Number and BPA Parent Award Number.
7. Unique Entity Identifier (UEI) which is in the System for Award Management (SAM) and replaces the Dun & Bradstreet Data Universal Numbering System (DUNS) number.
8. Federal Taxpayer Identification Number (TIN). In those rare cases where a contractor does not have a UEI number or TIN, a Vendor Identification Number (VIN) must be referenced on the invoice. The VIN is the number that appears after the contractor's name on the face page of the award document.
9. Identify that payment is to be made using a three-way match.
10. Description of supplies/services that match the description on the award, by line billed.*
11. Freight or delivery charge must be billed as shown on the award. If it is included in the item price do not bill it separately. If identified in the award as a separate line item, it must be billed separately.
12. Quantity, Unit of Measure, Unit Price, Extended Price of supplies delivered or services performed, as applicable, and that match the line items specified in the award.*

NOTE: If your invoice must differ from the line items on the award, please contact the Contracting Officer before submitting the invoice. A modification to the order or contract may be needed before the invoice can be submitted and paid.

Shipping costs will be reimbursed only if authorized by the Contract/Purchase Order. If authorized, shipping costs must be itemized. Where shipping costs exceed \$100, the invoice must be supported by a bill of lading or a paid carrier's receipt.

- B. The Contractor shall submit invoices to the Department of Treasury's Invoice Processing Platform (IPP) at <https://www.ipp.gov> <mailto:> with a copy to the approving official, as directed below.

The Contractor shall submit a copy of the electronic invoice to the following TPOC and Purchasing Agent

(PA):

TPOC Name: **TBD at award** Email: **TBD at award**

PA Name: **TBD at award** Email: **TBD at award**

II. Invoice Payment

- A. Except as indicated in paragraph B., below, the due date for making invoice payments by the designated payment office shall be the later of the following two events:
 - 1. The 30th day after the designated billing office has received a proper invoice.
 - 2. The 30th day after Government acceptance of supplies delivered or services performed.
- B. The due date for making invoice payments for meat and meat food products, perishable agricultural commodities, dairy products, and edible fats or oils, shall be in accordance with the Prompt Payment Act, as amended.

III. Interest Penalties

- A. An interest penalty shall be paid automatically, if payment is not made by the due date and the conditions listed below are met, if applicable.
 - 1. A proper invoice was received by the designated billing office.
 - 2. A receiving report or other Government documentation authorizing payment was processed and there was no disagreement over quantity, quality, or contractor compliance with a term or condition.
 - 3. In the case of a final invoice for any balance of funds due the contractor for supplies delivered or services performed, the amount was not subject to further settlement actions between the Government and the Contractor.
- B. Determination of interest and penalties due will be made in accordance with the provisions of the Prompt Payment Act, as amended, the Contract Disputes Act, and regulations issued by the Office of Management and Budget.

IV. HHSAR 352.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2022)

(a) *Definitions.* As used in this clause—

Payment request means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices” and the applicable Payment clause included in this contract.

(b) Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Department of Treasury Invoice Processing Platform (IPP) or successor system. Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.

(c) The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with HHS procedures.

(d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer’s written authorization with each payment request.

13.0 SPECIAL ORDER REQUIREMENTS

13.1 Restrictions on Contractor Access to Government or Third-Party Information

The purpose of this clause is to set forth the restrictions that will govern Contractor employees access to

Government or third party information in order to protect the information from unauthorized use or disclosure.

- A. Under this purchase order, the Contractor will have access to Contractor proprietary information and other nonpublic information.
- B. Restrictions on use and disclosure of information.
 - (1) With regard to any information to which the Contractor is given access in performance of this purchase order, whether the information comes from the Government or from third parties, the Contractor shall:
 - (i) Utilize the information only for the purposes of performing the services specified in this purchase order, and not for any other purposes;
 - (ii) Safeguard information from unauthorized use and disclosure;
 - (iii) Allow access to the information only to those employees who need it to
 - (iv) perform services under this purchase order;
 - (v) Preclude access and disclosure of information to persons and entities outside of the Contractor's organization that do not have authority to access the information;
 - (vi) Inform employees, who may require access to information, about their obligations to utilize it only to perform the services specified in this purchase order and to safeguard that information from unauthorized use and disclosure; and
 - (vii) Ensure each employee complies with the restrictions set forth in (i), (ii), (iii), and (iv) above.
 - (2) Unless specifically permitted in writing by the Contracting Officer, the Contractor shall not use information acquired in performance of the purchase order, or generated by or for the Government to:
 - (i) Compete for work for the Government; or
 - (ii) Submit an unsolicited proposal to the Government.
 - (3) If the Contractor is exposed to information that is marked in a way that indicates the Contractor should not receive this information, the Contractor shall:
 - (i) Notify the Contracting Officer; and
 - (ii) Use the information only in accordance with the instructions of the Contracting Officer.
- C. Breach of any of the conditions of this section of the purchase order may provide grounds for the Government to:
 - (1) Require the contractor to remove the contract employee or employees from the performance of the purchase order;
 - (2) Require the contractor to terminate the subcontractor;
 - (3) Suspend contractor payments;
 - (4) Terminate this contract for default or cause;
 - (5) Suspend or debar the Contractor for serious misconduct affecting present responsibility; and;
 - (6) Pursue such other remedies as may be permitted by law, regulation, or this purchase order.
- D. Unauthorized disclosure or other misuse of information protected by the Privacy Act of 1974 may result in a fine up to \$5000 and /or other penalties. In addition, unauthorized disclosure or other misuse of information covered under the Federal Trade Secrets Act (18 USC 1905) may result in a fine, or imprisonment up to 1 year, or both.
- E. The Contractor shall flow down this clause to subcontractors at all tiers.

13.2 Post-Award Organizational Conflict of Interest (OCI)

- A. General: The Contractor shall have programs in place to identify, report, and mitigate actual and potential conflicts of interest for itself, its employees, subcontractors and consultants. The existence

of such programs and the disclosure of known actual or potential conflicts are material performance requirements of this purchase order.

- B. Disclosure: The Contractor shall report all actual and potential conflicts of interest pertaining to this purchase order to the Contracting Officer, including those that would be caused by a contemplated modification to this purchase order or another contract. Such reports shall be in writing (including by email). Upon request, the Contractor shall respond to a Contracting Officer's request for an OCI mitigation plan.
- C. Resolution: In the event the Contracting Officer determines that a conflict of interest exists, based on disclosure from the Contractor or from other sources, the Contracting Officer shall take action which may include, but is not limited to, requesting a mitigation plan from the Contractor, terminating part or all of the purchase order, modifying the contract or obtaining a waiver in accordance with applicable law, including FAR 9.503 as applicable.

14.0 CLOUD SERVICE RELATED PROCUREMENTS

- 1. The Contractor (and/or any subcontractor) must be responsible for the following privacy and security requirements:
 - a. FedRAMP Compliant ATO. Comply with FedRAMP Assessment and Authorization (A&A) requirements and ensure the information system/service under this contract has a valid FedRAMP compliant (approved) authority to operate (ATO) in accordance with Federal Information Processing Standard (FIPS) Publication 199 defined security categorization. If a FedRAMP compliant ATO has not been granted, the Contractor may submit a plan to obtain a FedRAMP compliant ATO.
 - i. Implement applicable FedRAMP baseline controls commensurate with the agency-defined security categorization and the applicable FedRAMP security control baseline (www.FedRAMP.gov). The HHS Information Security and Privacy Policy (IS2P) and HHS Cloud Computing and Federal Risk and Authorization Management Program (FedRAMP) Guidance further define the baseline policies as well as roles and responsibilities. The Contractor must also implement a set of additional controls identified by the agency when applicable.
 - ii. A security control assessment must be conducted by a FedRAMP third-party assessment organization (3PAO) for the initial ATO and annually thereafter or whenever there is a significant change to the system's security posture in accordance with the FedRAMP Continuous Monitoring Plan.
 - b. Data Jurisdiction. The contractor must store all information within the security authorization boundary, data at rest or data backup, within the Continental United States (CONUS) if so required
 - c. Service Level Agreements. The Contractor must understand the terms of the service agreements that define the legal relationships between cloud customers and cloud providers and work with NIH to develop and maintain an SLA.
 - d. Interconnection Agreements/Memorandum of Agreements. The Contractor must establish and maintain Interconnection Agreements and or Memorandum of Agreements/Understanding in accordance with HHS/NIH policies using NIH provided templates.
- 2. Protection of Information in a Cloud Environment
 - a. If contractor (and/or any subcontractor) personnel must remove any information from the primary work area, they must protect it to the same extent they would the

proprietary data and/or company trade secrets and in accordance with HHS/NIH policies <https://www.hhs.gov/web/governance/digital-strategy/it-policyarchive/index.html>.

- b. HHS and/or NIH will retain unrestricted rights to federal data handled under this contract. Specifically, HHS/NIH retains ownership of any user created/loaded data and applications collected, maintained, used, or operated on behalf of HHS and hosted on contractor's infrastructure, as well as maintains the right to request full copies of these at any time. If requested, data must be available to HHS/NIH within one (1) business day from request date or within the timeframe specified otherwise. In addition, the data must be provided at no additional cost to HHS and/or NIH.
 - c. The Contractor (and/or any subcontractor) must ensure that the facilities that house the network infrastructure are physically and logically secure in accordance with FedRAMP requirements and HHS policies.
 - d. The contractor must support a system of records in accordance with NARA-approved records schedule(s) and protection requirements for federal agencies to manage their electronic records in accordance with 36 CFR § 1236.20 & 1236.22 (ref. a), including but not limited to the following:
 - i. Maintenance of links between records and metadata, and
 - ii. Categorization of records to manage retention and disposal, either through transfer of permanent records to NARA or deletion of temporary records in accordance with NARA-approved retention schedules.
 - e. The disposition of all HHS data must be at the written direction of NIH. This may include documents returned to HHS/NIH control; destroyed; or held as specified until otherwise directed. Items returned to the Government must be hand carried or sent by certified mail to the COR.
 - i. If the system involves the design, development, or operation of a system of records on individuals, the Contractor must comply with the Privacy Act requirements.
3. Media Transport
- a. The Contractor and its employees must be accountable and document all activities associated with the transport of government information, devices, and media transported outside controlled areas and/or facilities. These include information stored on digital and non-digital media (e.g., CD-ROM, tapes, etc.), mobile/portable devices (e.g., USB flash drives, external hard drives, and SD cards). The contractor will also:
 - i. Protect and control information system media during transport outside of controlled areas using cryptography (in the case of sensitive information), or security safeguards in accordance with HHS, NIH, and IC policies commensurate with the FIPS 199 security categorizations for confidentiality and integrity of the data;
 - ii. Maintain accountability for information system media during transport outside of controlled areas;
 - iii. Document activities associated with the transport of information system media; and
 - iv. Restrict the activities associated with the transport of information system media to authorized personnel
 - b. All information, devices and media must be encrypted with HHS-approved encryption mechanisms to protect the confidentiality, integrity, and availability of all government information transported outside of controlled facilities.
4. Boundary Protection: Trusted Internet Connections (TIC)
- a. The contractor must ensure that government information, other than unrestricted information, being transmitted from federal government entities to external entities using cloud services is inspected by Trusted Internet Connection (TIC) processes that are

in compliance with the requirements of the Office of Management and Budget (OMB) Memorandum (M) 19-26: Update to the TIC Initiative, TIC 3.0.

- b. The contractor must route all external connections through a TIC.
- c. Non-Repudiation. The contractor must provide a system that implements encryption with current FIPS 140 validation certificate from the NIST CMVP that provides for origin authentication, data integrity, and signer non-repudiation

15.0 PURCHASE ORDER CLAUSES

FAR 52.252-2 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.acquisition.gov/hhsar>

REVOLUTIONARY FEDERAL ACQUISITION REGULATIONS (FAR) OVERHAUL (RFO) – CLAUSES

INCORPORATED BY REFERENCE:

Clause No.:	Title	Date
52.212-4	Terms and Conditions—Commercial Products and Commercial Services	Deviation Date NOV 2025
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.204-13	System for Award Management—Maintenance	Deviation Date NOV 2025
52.209-6	Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	Deviation Date NOV 2025
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Deviation Date NOV 2025
52.222-3	Convict Labor	Deviation Date NOV 2025
52.222-36	Equal Opportunity for Workers with Disabilities	Deviation Date NOV 2025
52.222-50	Combating Trafficking in Persons	Deviation Date NOV 2025
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	Deviation Date NOV 2025
52.232-33	Payment by EFT—System for Award Management	OCT 2018
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-3	Protest After Award	Deviation Date NOV 2025
52.233-4	Applicable Law for Breach of Contract Claim	Deviation Date NOV 2025
52.240-91	Security Prohibitions and Exclusions	Deviation Date NOV 2025
52.240-93	Basic Safeguarding of Covered Contractor Information Systems	Deviation Date NOV 2025
52.244-6	Subcontracts for Commercial Products and Commercial Services	Deviation Date NOV 2025

HEALTH AND HUMAN SERVICES ACQUISITION REGULATION (HHSAR) – CLAUSES INCORPORATED BY

REFERENCE:

Clause No.:	Title	Date
352.224-71	Confidential Information	FEB 2024 (Deviation)
352.227-70	Publications and Publicity	DEC 2015
352.232-71	Electronic Submission of Payment Requests	FEB 2022
352.239-71	Security Requirements for Information Technology Resources	
352.239-77	Cloud Computing	
352.239-78	Information and Communication Technology Accessibility	
352.239-79	Information and Communication Technology Accessibility	

16.0 SOLICITATION PROVISIONS**FAR 52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov/browse/index/far

<https://www.acquisition.gov/hhsar>

FEDERAL ACQUISITION REGULATIONS (FAR) – PROVISIONS INCORPORATED BY REFERENCE:

Provision No.:	Provision Title	Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements — Representation	JAN 2017
52.204-7	System for Award Management—Registration	Deviation Date NOV 2025
52.212-1	Instructions to Offerors—Commercial Products and Commercial Services	Deviation Date NOV 2025
52.212-2	Evaluation—Commercial Products and Commercial Services	Deviation Date NOV 2025
52.240-90	Security Prohibitions and Exclusions Representations and Certifications	Deviation Date NOV 2025

17.0 QUOTE SUBMISSION

This Request for Quotation (RFQ) does not commit the Government to pay any cost for the preparation and submission of a quote. In addition, the Contracting Officer is the only individual who can legally commit the Government to the expenditure of public funds in connection with this proposed acquisition. By submitting a quote in response to this solicitation, it is understood that your firm's quote shall become a part of the official contract file. The Government is not responsible for locating or securing any information which the Quoter does not include or identify in their quotation.

Quotations submitted in response to this solicitation must be submitted via email no later than **10:00 AM EST Tuesday, April 28, 2026** to the point of contact listed below:

Name: Teferi Gebremariam, Contracting Specialist
Email: Teferi.Gebremariam@hhs.gov

It's the Quoter's responsibility to read the RFQ and all related documents carefully. All quotations shall provide enough information for the Government to conduct a thorough evaluation of the quotes provided, and the quoter's ability to fulfill the stated needs within this RFQ. Additionally, it is the Quoter's responsibility to ensure/verify the Government receives its submission on or before the date/time specified above. The Government reserves the right to not accept any late quotes, any quote that does not provide items/services requested, or quotes that do not conform to the requirements of the RFQ. Please do not wait until the deadline to submit your quotation. Quotes submitted by any other means other than e-GOS will not be accepted.

At a minimum all quotes shall include the following:

1. Cover letter including:
 - A. RFQ Number
 - B. Federal Tax Identification Number (TIN);
 - C. Unique Entity Identifier (UEI);
 - D. Cage Code;
 - E. Business size and designation
 - F. Point of Contact Information for individuals authorized to commit on behalf of their
 - G. organization. Including name, address, and telephone number of the offeror;
 - H. "Remit to" address, if different than the mailing address;
2. Acknowledgement of any Solicitation Amendments
3. Pricing and discount terms based on the pricing table in Section 7.0 Consideration and Payment. Include a statement to the effect that pricing is firm for a period of at least 60 days from the date of receipt thereof by the Government.

18.0 BASIS FOR AWARD AND EVALUATION

The Government intends to evaluate the quotation and make a single fixed price award. Only a technically acceptable quotation will be eligible for award. A technically acceptable quote is one in which the quoter(s) complies with RFQ and does not take exception, nor object to any of the terms of the RFQ. The quote should clearly and fully demonstrate the quoter's ability to meet the technical requirements and the quoter's knowledge and experience regarding the technical requirements and contain detailed pricing that aligns with the requirement. In order for a quote to be considered eligible for award, it must be prepared in accordance with and in compliance with the instructions given in this solicitation, and address all of the requirements. Quotes which merely offer to conduct a program in accordance with the requirements of the Government's scope of work will not be eligible for award.